

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

EDWIN GONZALEZ,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, DETECTIVE JASON MILLER, Shield No. 2120, SERGEANT JOSEPH TAYLOR, Tax No. 931829, POLICE OFFICER WILLIAMS, DETECTIVE EDWIN FELICIANO, DETECTIVE RICHARD ALLISON, Shield No. 7294, and POLICE OFFICERS JOHN DOES #1-4 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York County as the place of trial.

Defendants.

----- X

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
July 22, 2016

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE JASON MILLER, Shield No. 2120, Narcotics Borough Manhattan South,
1 Police Plaza, Room 1200, NY, NY
SERGEANT JOSEPH TAYLOR, Tax No. 931829, Narcotics Borough Manhattan South,
1 Police Plaza, Room 1200, NY, NY
POLICE OFFICER WILLIAMS, Narcotics Borough Manhattan South, 1 Police Plaza,
Room 1200, NY, NY
DETECTIVE EDWIN FELICIANO, Narcotics Borough Manhattan South, 1 Police
Plaza, Room 1200 NY, NY
DETECTIVE RICHARD ALLISON, Shield No. 7294, Narcotics Borough Manhattan
South, 1 Police Plaza, Room 1200, NY, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

EDWIN GONZALEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JASON
MILLER, Shield No. 2120, SERGEANT JOSEPH
TAYLOR, Tax No. 931829, POLICE OFFICER
WILLIAMS, DETECTIVE EDWIN FELICIANO,
DETECTIVE RICHARD ALLISON, Shield No. 7294,
and POLICE OFFICERS JOHN DOES #1-4 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff EDWIN GONZALEZ, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. On July 22, 2013, at approximately 12:00 p.m., plaintiff was lawfully sitting in a park located in or about Sheriff Street and Delancey Street, New York, New York when the individually named New York City police officer defendants, unlawfully stopped, questioned, frisked, searched, falsely imprisoned, unlawfully seized, and falsely arrested plaintiff. Plaintiff was subjected to an illegal strip search at the precinct. Thereafter, the officers maliciously prosecuted plaintiff and denied plaintiff a right to a fair trial by initiating a prosecution against him, without probable cause by falsifying evidence, providing false, misleading and/or incomplete information to the DA's Office and by signing a Criminal Court complaint which contained false information about plaintiff. Those officers that did not physically touch plaintiff are liable for failing to intervene and stop the unlawful conduct against claimant that was being committed by their fellow officers. All criminal charges against plaintiff were dismissed and sealed on July 9, 2014. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted,

illegally strip searched, and denied plaintiff the right to a fair trial, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York.

PARTIES

2. Plaintiff Edwin Gonzalez is a resident of the state of New York.

3. DETECTIVE JASON MILLER, Shield No. 2120, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE JASON MILLER, Shield No. 2120, is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan South.

5. DETECTIVE JASON MILLER, Shield No. 2120 is being sued in his individual and official capacity.

6. SERGEANT JOSEPH TAYLOR, Tax No. 931829, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT JOSEPH TAYLOR, Tax No. 931829, is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan South.

8. SERGEANT JOSEPH TAYLOR, Tax No. 931829 is being sued in his individual and official capacity.

9. POLICE OFFICER WILLIAMS, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER WILLIAMS, is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan South.

11. POLICE OFFICER WILLIAMS is being sued in his individual and official capacity.

12. DETECTIVE EDWIN FELICIANO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. DETECTIVE EDWIN FELICIANO, is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan South.

14. DETECTIVE EDWIN FELICIANO is being sued in his individual and official capacity.

15. DETECTIVE RICHARD ALLISON, Shield No. 7294, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. DETECTIVE RICHARD ALLISON, Shield No. 7294, is and was at all times relevant herein, assigned to the Narcotics Borough Manhattan South.

17. DETECTIVE RICHARD ALLISON, Shield No. 7294 is being sued in his individual and official capacity.

18. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Police Officers John Does #1-4 are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

22. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

23. A 50-h hearing was conducted on October 9, 2014.

24. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. By way of background, on July 22, 2013, at approximately 12:00 p.m., plaintiff as lawfully sitting in a park located in or about Sheriff Street and Delancey Street, New York, New York, when the individually named New York City police officer defendants proceeded to unlawfully stop, seize and detain plaintiff without his consent, and without reasonable suspicion, probable cause, or any legal justification.

28. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

29. At no time was plaintiff in possession of any illegal drugs, weapons, or contraband of any kind on July 22, 2013, nor did the defendant police officers have an objective reason to believe plaintiff possessed illegal drugs, weapons, or contraband of any kind.

30. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and falsely arrested him without legal justification or probable cause.

31. The individually named police officers unlawfully searched plaintiff's person without probable cause or any legal justification and did not locate any illegal drugs weapons or contraband as a result or the search.

32. Plaintiff was unlawfully placed in a van, against his will and locked in the van for approximately one or two hours as the van drove around Manhattan.

33. Eventually plaintiff was brought to the 7th Precinct stationhouse whereat the defendant police officers unlawfully fingerprinted and photographed him and detained him in a holding cell for many hours.

34. Plaintiff was then unlawfully taken to a bathroom where defendants unlawfully strip searched plaintiff, without any legal justification to strip search him.

35. At no time did defendants have probable cause to suspect that plaintiff secreted an illegal substance, a weapon or contraband underneath his clothing or into a body cavity.

36. Defendants did not recover any illegal drugs, weapons or contraband from plaintiff's person or from his possession, custody or control as a result of the unlawful strip search.

37. On July 22, 2013, after approximately 10 hours in custody, plaintiff was given a Desk Appearance Ticket and was released from the precinct.

38. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the

criminal court complaint, defendants maliciously initiated a prosecution against plaintiff without probable cause, and was falsely charged with several crimes.

39. Plaintiff was forced to appear in Manhattan County Criminal Court on approximately ten occasions before all criminal charges were dismissed and sealed on July 9, 2014.

40. At no time did plaintiff commit a crime, nor did the defendant police officers have any reason to believe he committed a crime on July 22, 2013.

41. The officers knew they lacked probable cause to arrest plaintiff July 22, 2013.

42. At no time on July 22, 2013 did the defendant police officers recover any drugs, weapons, or contraband of any kind from plaintiff, nor did anybody, including the individually named defendant police officers observe plaintiff hand another individual an unlawful substance.

43. Nevertheless, the defendant handcuffed plaintiff and falsely arrested him without legal justification or probable cause.

44. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, strip search, false arrest, false imprisonment, malicious prosecution, and denial of fair trial and due process rights to plaintiff.

45. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

46. As a result of defendant City of New York and the New York City Police Department's policy of unlawfully stopping, questioning, frisking and searching individuals, without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely engage in this misconduct and unlawful behavior, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason.

47. A Federal Court has entered judgment against the City of New York and the NYPD after a Federal trial covering the time period of the underlying incident in this case and found that the City of New York and the NYPD had a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally and unconstitutionally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See Floyd v. City of New York, 08-Civ. -1034 (SAS), Opinion and Order (S.D.N.Y. Aug. 12, 2013).

48. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutionally stopping, questioning, frisking and searching individuals, which are conducted without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct these stops and searches without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

49. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, deny plaintiff his due process rights and deny plaintiff the right to a fair trial and did nothing from stopping the violations from continuing.

50. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, illegal strip search, denial of due process, denial of a fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, subjected to denial of his due process rights and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

61. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The illegal approach, pursuit, stop and search inside plaintiff's, pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

68. Defendants lacked probable cause to search plaintiff.

69. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

73. Plaintiff repeats and realleges paragraphs 1 through 72 as if fully set forth herein.

74. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

75. Defendants commenced and continued a criminal proceeding against plaintiff.

76. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

77. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

78. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

81. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 80 with the same force and effect as if fully set forth herein.

82. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Manhattan County District Attorney's Office.

83. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Manhattan County District Attorney's Office.

84. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Manhattan County District Attorney's Office.

85. In withholding/creating false evidence against plaintiff Edwin Gonzalez and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

86. As a result of the foregoing, plaintiff Edwin Gonzalez, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Failure to Intervene

89. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

91. Defendants failed to intervene to prevent the unlawful conduct described herein.

92. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Unlawful Strip Search

95. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. Plaintiff was searched by defendants without an individualized reasonable suspicion or probable cause to believe that plaintiff was concealing weapons or other contraband, based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

97. As a result of the aforementioned conduct of defendants, plaintiff Edwin Gonzalez to sustained injuries.

98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

99. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

100. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

102. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally stopping, questioning, searching, and arresting individuals without a specific, articulable factual basis supporting reasonable suspicion and/or probable cause that plaintiff committed a crime and fabricating allegations against an individual to justify the amount of force used during an arrest, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to these issues.

103. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

104. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

105. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

106. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

107. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

TENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Unconstitutionally Stopping, Questioning, Frisking, and Searching Individuals in violation of the Fourth and Fourteenth Amendments to the United States Constitution

108. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 113 with the same force and effect as if more fully set forth at length herein

109. A Federal Court has already entered judgment against the City of New York after a trial and found that for a many years, including the time period of June 5, 2013, the date plaintiff was arrested, defendant City of New York and the NYPD had a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally and unconstitutionally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See Floyd v. City of New York, 08-Civ. -1034 (SAS), Opinion and Order (S.D.N.Y. Aug. 12, 2013).

110. A Federal Court has already entered judgment against the City of New York and the NYPD after a Federal trial and found that the City of New York and the NYPD had a policy, practice or custom within the New York City Police Department, wherein at the time of the underlying incident in this case, New York City Police Officers illegally and unconstitutionally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See Floyd v. City of New York, 08-Civ. -1034 (SAS), Opinion and Order (S.D.N.Y. Aug. 12, 2013).

111. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutionally stopping, questioning, frisking and searching individuals, which are conducted without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct these stops and searches without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

112. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of

defendant City of New York, which is forbidden by the Fourth Amendment to the Constitution of the United States.

113. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of Yonkers, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless stops, seizures, questions, frisks, searches, and arrests, for trespass into a privately owned apartment building.

114. The City of New York has acted with deliberate indifference to the Fourth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of his rights under the Fourth and Fourteenth Amendments to the United States Constitution.

115. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

116. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Edwin Gonzalez demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 22, 2016

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE JASON MILLER, Shield No. 2120, Narcotics Borough Manhattan South,
1 Police Plaza, Room 1200, NY, NY
SERGEANT JOSEPH TAYLOR, Tax No. 931829, Narcotics Borough Manhattan South,
1 Police Plaza, Room 1200, NY, NY
POLICE OFFICER WILLIAMS, Narcotics Borough Manhattan South, 1 Police Plaza,
Room 1200, NY, NY
DETECTIVE EDWIN FELICIANO, Narcotics Borough Manhattan South, 1 Police
Plaza, Room 1200 NY, NY
DETECTIVE RICHARD ALLISON, Shield No. 7294, Narcotics Borough Manhattan
South, 1 Police Plaza, Room 1200, NY, NY

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
July 22, 2016

/s/
STUART E. JACOBS